

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

5. AMBER MAYES V. KRIS MAYES

25FL0143

On March 25, 2026, Petitioner filed a Request for Order (RFO) seeking to compel disclosures and sanctions. The RFO and other documents were served on April 7, 2026, however the Notice of Tentative Ruling was not served.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served. Respondent is aware of the requests made therein and chose not to file an opposition. As such, the court treats his failure to do so as an admission that the requests made in the RFO are meritorious.

Petitioner asks the court to order Respondent to complete and serve his Preliminary Declaration of Disclosure (PDD) as soon as reasonably possible. She further requests sanctions but does not specify the amount requested.

Family Code section 2104 imposes on each party the obligation of making a preliminary disclosure of assets within the timeframe specified. For the party responding to a Petition for Dissolution, the disclosure is due either concurrently with the response or within 60 days of filing the same. Where a party fails to comply with Section 2104, the complying party may, among other things, file a motion to compel and seek sanctions against the noncomplying party. Fam. Code § 2107(b)(1). “[T]he court *shall*...impose monetary sanctions against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and *shall* include reasonable attorney’s fees, costs incurred, or both, unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Fam. Code § 2107(c).

Here, Petitioner has complied with her disclosure obligations and as such she can afford herself of relief under Family Code § 2107 for Respondent’s failure to do the same. The Response to the Petition was filed on March 21st. It has been more than sixty days since that date and Respondent has yet to file his required PDD. Accordingly, Respondent is ordered to serve his full and complete PDD, with supporting documents no later than July 9, 2026. He is sanctioned \$500 for his failure to comply with his disclosure obligations. This amount is to be paid directly to Petitioner’s attorney. Respondent may pay the amount in one lump sum or in monthly increments of \$50 commencing on July 1, 2026 and continuing

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

on the 1st of each month thereafter until paid in full (approximately 10 months). If any payment is missed or late, the entire amount shall become immediately due and payable.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: RESPONDENT IS ORDERED TO SERVE HIS FULL AND COMPLETE PDD, WITH SUPPORTING DOCUMENTS NO LATER THAN JULY 9, 2026. HE IS SANCTIONED \$500 FOR HIS FAILURE TO COMPLY WITH HIS DISCLOSURE OBLIGATIONS. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER'S ATTORNEY. RESPONDENT MAY PAY THE AMOUNT IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$50 COMMENCING ON JULY 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH THEREAFTER UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.